

UNITED STATES DEPARTMENT OF AGRICULTURE
BEFORE THE SECRETARY OF AGRICULTURE

In re:)
)
WuXi App Tec, Inc.,) AWA Docket No. [25-J-0089](#)
)
Respondent)

Consent Decision and Order

This proceeding was instituted under the Animal Welfare Act, as amended (7 U.S.C. §§ 2131-2159) (“Act” or “AWA”), by a complaint filed by the Administrator of the Animal and Plant Health Inspection Service (“Complainant”) alleging that respondent WuXi AppTec, Inc. (“Respondent”), violated the Act and the regulations (9 C.F.R. Part 2) (Regulations) and standards (9 C.F.R. Part 3) (Standards) issued thereunder. Complainant and respondent have agreed that this proceeding should be terminated by entry of this Consent Decision and Order pursuant to Consent Decision provisions (7 C.F.R § 1.138) of the Rules of Practice Governing Formal Adjudicatory Proceedings Instituted by the Secretary under Various Statutes (7 C.F.R. § 1.130 et seq.) applicable to this proceeding and have thereby agreed to the following stipulations:

Respondent admits to the findings of fact as set forth herein and specifically admits that the Secretary of Agriculture has jurisdiction in this matter. Respondent neither admits nor denies the remaining allegations in the complaint. The parties agree to the issuance of the following Consent Decision and Order without the need for further procedure or hearing. Respondent specifically waives its right to any further process or procedure in this proceeding. Respondent further waives all rights to seek judicial review or other challenge or contest the validity of this Consent Decision and Order, including waiving any challenges to the Administrative Law Judge’s authority to enter this Consent Decision and Order under the Administrative Procedure

Act and the Constitution of the United States of America, and waives any action against the United States Department of Agriculture (“USDA”) under the Equal Access to Justice Act of 1980 (5 U.S.C. § 504) for fees and other expenses incurred by respondent in connection with this proceeding or any action against any USDA employee in his or her individual capacity.

The parties agree and consent to the entry of this Consent Decision and Order for the purpose of settling this proceeding without further procedure or hearing.

FINDINGS OF FACT

1. Respondent is a corporation with a mailing address of 2540 Executive Dr., Saint Paul, MN 55120.
2. At all times mentioned herein, Respondent was a research facility as that term is defined in the Act and the Regulations and held AWA Class “R” registration No. 41-R-0061.

CONCLUSIONS OF LAW

Respondent WuXi App Tec, Inc., having admitted the findings of fact as set forth herein, and the parties having agreed to the entry of this Consent Decision and Order, such Consent Decision and Order shall be entered.

ORDER

1. Respondent WuXi App Tec, Inc., its agents and employees, successors and assigns, directly or through any corporate or other device, shall cease and desist from violating the Act, the regulations, and the standards.
2. This Consent Decision and Order settles and resolves any and all violations of the Act, the regulations, and the standards that have been or could be alleged up to and including the effective date of this Consent Decision and Order.

3. This Consent Decision and Order shall become final and effective on the date of issuance by an Administrative Law Judge.

4. Copies of the executed Consent Decision and Order shall be served upon the parties.

By: Kevin Slattery
Kevin Slattery
General Counsel and Corporate
Secretary
WuXi App Tec, Inc.

By: Thomas Bolick
Thomas N. Bolick
Attorney for Complainant

Done at Washington, D.C.,

this 11th day of September 2025

By: Tierney Carlos
Administrative Law Judge

CERTIFICATE OF SERVICE

WuXi Aoo Tec, Inc.,
Docket No.: 25-J-0089

I HEREBY CERTIFY that a true and correct copy of the ***COMPLAINT, PROPOSED
CONSENT DECISION AND ORDER AND CONSENT DECISION AND ORDER (Signed)***
has been furnished and was served upon the following parties on September 15, 2025 by the
following:

USDA (OGC) – Electronic Mail

Thomas Bolick, OGC
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Kevin Slattery
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Respectfully Submitted,

Marilyn T. Kennedy

Marilyn T. Kennedy, Acting Hearing Clerk
USDA/Office of Administrative Law Judges
Hearing Clerk's Office, Room 1031-S
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